

Madhya Pradesh Bhu-Rajasava Sanhita (Seemankan) Niyam, 2018

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State of Madhya Pradesh - Act

Madhya Pradesh Bhu-Rajasava Sanhita (Seemankan) Niyam, 2018

MADHYA PRADESH

India

Madhya Pradesh Bhu-Rajasava Sanhita (Seemankan) Niyam, 2018

Rule MADHYA-PRADESH-BHU-RAJASAVA-SANHITA-SEEMANKAN-NIYAM-2018 of 2018

Published on 28 January 2019

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Madhya Pradesh Bhu-Rajasava Sanhita (Seemankan) Niyam, 2018

Published vide Notification No. F-2-13-2018-7-Se. 7, date Bhopal, dated 28.01.2019

Last Updated 4th February, 2020

Notification No. F-2-13-2018-7-Se. 7, date Bhopal, dated 28.01.2019. - In exercise of the powers conferred by clause (xxx) of sub-section (2) of section 258 of the Madhya Pradesh Land Revenue Code, 1959 (No 20 of 1959) read with section 129 of the said Code and in supersession of this Department's notification number 187-6477-VII-N-(Rules) dated 6th January; 1960, published in the Madhya Pradesh Rajpatra, dated 22nd January, 1960, the State Government, hereby, makes the Madhya Pradesh Bhu-Rajasv Sanhita (Seemankan) Niyam, 2018, the same have been previously published, as required by sub-section (3) of section 258 of the said Code, namely:-

1.

Short title and commencement.

(1)
These rules may be called the Madhya Pradesh Bhu-Rajasava Sanhita (Seemankan) Niyam, 2018.

(2)
They shall come into force from the date of their publication in the Madhya Pradesh Gazette.

2.
Definitions.

(1)
In these rules unless the context otherwise requires,-

(a)
'Code' means the Madhya Pradesh Land Revenue Code, 1959 (No 20 of 1959);

(b)
'Form' means the forms appended to these rules;

(c)
'Schedule' means schedule appended to these rules;

(d)
'Section' means section of the Code;

(e)
'Team leader' means the person leading the team constituted under rule 8.

(2)
The words and expressions used in these rules but not defined and have been defined in the Code, shall have the same meaning as respectively assigned to them in the Code.

3.
The application for demarcation and construction of boundary marks shall be made in Form I.

4.
(1)
The applicant shall pay such fees as may be fixed by the Collector from time to time, with the approval of the Commissioner Land Records for demarcation and construction of boundary marks respectively.

(2)
Different fees may be fixed for different districts depending on the charges required to be paid to the agencies authorised to render assistance in carrying out demarcation and construction of boundary marks in the different districts under sub-rule (1) of rule 7.

(3)
If the applicant wishes to construct the boundary marks at his own expenses and labour he shall pay fee as fixed for demarcation only.

(4)
Till the fee is fixed by the Collector under sub-rule (1), the applicant shall pay the fee fixed immediately prior to the commencement of these rules.

5.
The demarcation report under sub-section (2) of section 129 shall be submitted to the Tahsildar in Form II.

6.
The demarcation report under sub-section (7) of section 129 shall be submitted to the Sub-Divisional Officer in Form III.

7.
(1)
The Collector, under sub - section (3) of section 129, under the control of Commissioner Land Records, may authorize one or more agency for the district to render assistance in carrying out demarcation and construction of boundary marks.

(2)
The Tahsildar may, in accordance with the directions issued by the Collector from time to time engage any one of the agencies authorised under sub-rule (1) to assist Revenue Inspector or Nagar Sarvekshak in carrying out demarcation and construction of boundary marks under sub-section (3) of Section 129.

(3)
The Sub-Divisional Officer may, in accordance with the directions issued by the Collector, from time to time, engage any

of the agency authorised under sub-rule (1) to carry out demarcation and construction of boundary marks under sub-section (6) of section 129.

8.

(1)

The team deputed by the Sub-Divisional Officer under sub-section (6) of section 129 shall consist of following persons -

(a)

Superintendent of Land Records or Assistant Superintendent of Land Records or Revenue Inspector or Nagar Sarvekshak-as , Team Leader; and

(b)

any other Revenue Inspector or Nagar Sarvekshak-as a member of the team.

(2)

The Sub-Divisional Officer may, if he thinks fit, add one or more persons having expertise in demarcation of land in the team constituted under sub-rule (1).

9.

The dimensions and specifications of boundary marks constructed under sub-section (9) of section 129 shall be as per Schedule-I:

Provided that till the authorization of the agencies under sub-rule (1) of rule 7, the dimensions and specifications of boundary marks shall be the same as specified immediately prior to the commencement of these rules.

10.

The Commissioner Land Records may from time to time issue technical instructions for carrying out demarcation and construction of boundary marks under sub-section (9) of section 129.

11.

If any person will fully destroys or damages or removes without lawful authority any boundary or survey marks constructed lawfully he may be liable for penalty under section 130 of the Code.

I

Specifications of boundary marks

(See Rule 9)

1. Property pins of the specifications given in the Table below may be fixed as boundary marks to facilitate identification of the boundaries of a survey number, block number or plot number.

2. At least four property pins shall be used to delineate the boundaries of the land of which at least two pins shall be of Type 1.

3. Where it is not possible to use Type 1 or Type 2 pins, Type 3 pins may be used.

4. On the curvatures and bends of the boundary of land as many property pins shall be fixed as may be deemed necessary to define the boundary.

5. To increase the visibility of boundary marks property pin caps may be used at the request of the applicant.

6. The expenses of purchasing and fixing property pins and property pin caps shall be borne by the applicant. In order to procure and fix the pins and caps, the applicant may choose the agency designated by the Collector or' any other source.

7.

The Commissioner Land Records may, from time to time, issue directions regarding use of property pins.

Table

[See rule 9]

Specifications for boundary marks used in demarcation

S.No

Type of Boundary Mark

Specifications

Diagram

(1)

(2)

(3)

(4)

1.

Property Pin -Type 1

(1) Mild Steel bar

with a coating of galvanized steel.

(2) Dimensions:-

(a) Diameter - 2.5 cm

(b) Length - 90 cm

(c) Conical Head of 5

cm diameter which is flat at the top

(d) Bottom end of the

pin tapers to a sharp point

(3) The pin shall be

inserted vertically into the ground on the border of the survey

number, block number or plot number, as the case may be, leaving

10 cm of the pin above the ground.

(4) Where a fence or

wall is to be constructed, the height of the property pin above

the ground may be increased and the pin be made a part of the

wall or fence.

(5) The applicant may at his own expenses use

cement concrete or other suitable material to fix the pin to the

ground.

2.

Property Pin -Type-2

(1) Mild Steel bar

with a coating of galvanized steel.

(2) Dimensions:-

(a) Diameter - 1.6 cm

(b) Length - 60 cm

(c) Conical Head of 5

cm diameter which is flat at the top

(d) Bottom end of the

pin tapers to a sharp point

(3) The pin shall be

inserted vertically into the ground on the border of the survey

number, block number or plot number, as the case may be, leaving

10 cm of the pin above the ground.

(4) Where a fence or

wall is to be constructed, the height of the property pin above

the ground may be increased and the pin be made a part of the

wall or fence.

(5) The applicant may at his own expenses use

cement concrete or other suitable material to fix the pin to the

ground.

3.

Property Pin -Type-3

(1) Reinforced Cement

Concrete (RCC) pillar or stone pillar of dimensions 60 cm x 15 cm

x 15 cm

(2) The pillar shall

be inserted into the ground with plain cement concrete (PCC).

(3) Top 10 cm end of the pillar shall be above the ground.

4.

Property Pin cap

(1) Plain cement

concrete block or stone block of dimensions 15 cm x 15 cm x 10 cm with a hole of 3 cm diameter in centre.

(2) The pin cap shall be placed on the ground at a point where a Property Pin is to be fixed and the pin shall be inserted into the ground through the hole of the cap.

Form-I

[See rule 31

Application For Demarcation And Construction Of Boundary Marks

To

Tahsildar/Additional Tahsildar/Naib Tahsildar.....

Tehsil.....

District.....M.P.

I/we.....hereby, request for demarcation of land as per the particulars given below:

and/or

I/We hereby, request for construction of the boundary marks as per the particulars given below:

1. Particulars of the applicant

S. No

Name and Address

Name of Father/ Mother/ Husband/ Guardian

Mobile/Phone number

Scheduled Tribe/Scheduled Caste/ Other

Description and number of identity document

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

1.

2.

2. Particulars of land to be demarcated District.....Tehsil.....Revenue Inspector Circle..... Patwari Halka No./Sector No.....Village/Urban Area

S.No.

Survey No./Block No./Plot No.

Area (in hectare/sq.mtr.)

Name of the holder

(1)

(2)

(3)

(4)

1.

2.

3. Particulars of holders of adjoining lands.

S.No

No Survey No./Block No./Plot No.

Name of holder

Name of Father/Mother/ Husband /Guardian

Full address

Mobile/ Phone number (if known)

(1)

(2)

(3)

(4)

(5)

(6)

1.

2.

*4. Details of fee deposited

in Rupee

S.No.

Particular of fee deposited

Amount

Details of receipt of fees

(1)

(2)

(3)

(4)

1.

For demarcation

2.

For construction of boundary marks

Total in figures in words

* If the applicant wishes to construct boundary marks at his own expenses and labour he shall pay fee fixed for demarcation only.

Declaration

I/we.....Son of/Daughter of/Husband of..... address (full address with mobile phone No.).....

hereby, declares that the information given by me/us is true and correct to the best of my/our knowledge and nothing has been concealed by me/us. I/we also understand that in case of incorrect information submitted by me/us, legal action may be taken against .me/us.

Date

Place.....

Signature

Name.....

Applicant(s)

Essential enclosure

1. Copy of Khasra

2. Copy of Map of Survey No./Block No./Plot No. to be demarcated including adjoining Survey No./Block No./Plot No.

3. Copy of receipt of fee.

Form-II

[See rule 5]

Demarcation Report Of Revenue Inspector/nagar Sarvekshak

Revenue Case No.....

The Court of Tahsildar/Additional Tahsildar/Naib Tahsildar.....

Tehsil.....District.....M.P

Demarcation Report dated.....

In compliance to your order dated.....report of the demarcation of Survey No./Block No./Plot No.....situated in village/urban area.....Patwari halka No./Sector Nobelonging to the applicant.....is submitted as below:

1. Date of carrying out the demarcation
2. Start time of demarcation End time of demarcation
3. Particulars of notice of demarcation given to interested parties

S.No

Name

Date and mode of service of notice

(1)

(2)

(3)

1.

2.

4. Particular of parties whom notice could not be served.

S.No

Name

Reasons for non-service of notices

(1)

(2)

(3)

1.

2.

5. Names of officials and parties present during the demarcation.

S.No

Name

Designation/Party

(1)

(2)

(3)

1.

2.

3.

6. Types and number of boundary marks constructed, if any, after demarcation.....

7. Particulars of possession of any person other than applicant over the land or part thereof (to be marked in red ink in the map to be attached with the report)

S.No

Name

Area (in hect./sq.mtr.)

Details

(1)

(2)

(3)

(4)

1.

2.

8. Particulars of objections raised during demarcation and decision thereon.

S.No

Name of objector

Objection in brief

Decision on objections

(1)

(2)

(3)

(4)

1.

2.

9. Particulars of persons refusing to sign the 'panchanama'

S.No

Name

Reasons for refusal

(1)

(2)

(3)

1.

2.

10. If demarcation could not be done, reasons to be recorded

11.	Comments	of	Revenue	Inspector/Nagar
-----	----------	----	---------	-----------------

Sarvekshak.....				
-----------------	--	--	--	--

.....

Date.....

Place.....

Signature

Name.....

Revenue Inspector/Nagar Sarvekshak

Enclosures-

1. Copies of notices served on interested parties

2. Unserved notices in original (if any)

3. Panchanama

4. Field Book

5. Map

6. Others.....

Form-III

[See rule 6]

Report of Demarcation Team

Revenue Case No.....

The Court of Sub-Divisional Officer, Sub-Division.....

Tehsil.....District..... M.P

Demarcation Report dated.....

In compliance to your order dated.....report of the demarcation of Survey No./Block No./Plot No.....situated in village/urban area.....Patwari halka No./Sector No.....belonging to the applicant.....is submitted as below:-

1. Date of carrying out the demarcation.....

2. Start time of demarcation.....End time of demarcation.....

3. Particulars of notice of demarcation given to interested parties

S.No

Name

Date and mode of service of notice

(1)

(2)

(3)

1.

2.

4. particulars of parties whom notice could not be served.

- S.No
Name
Reasons for non-service of notices
(1)
(2)
(3)
1.
2.
5. Name of officials and parties present during the designation.
S.No
Name
Designation /party
(1)
(2)
(3)
1.
2.
6. Types and number of boundary marks constructed, if any, after demarcation.....
7. Particulars of possession of any person other than applicant over the land or part thereof (to be marked in red ink in the map to be attached with the report)
S.No
Name
Area (in hect./sq.mtr.)
Details
(1)
(2)
(3)
(4)
1.
2.
8. Particulars of objections raised during demarcation and decisions thereon.
S.No
Name of objector
Objections in brief
Decisions on objections
(1)
(2)
(3)
(4)
1.
2.
9. Particulars of persons refusing to sign the 'Panchanama'
S.No
Name of objector
Reasons for refusal
(1)
(2)
(3)
1.
2.
10. If demarcation could not be done, reasons to be recorded.....

11. Difference from the previous demarcation done by the Revenue Inspector/Nagar Sarvekshak on.....(date)

.....

12.

Comments of Team Leader

.....

.....

Date.....

Place.....

Signature

Names.....

Team Leader and other Members of the Team

Enclosures -

1. Copies of notices served on interested parties

2. Un-served notices in original (if any)

3. Panchanama

4. Field Book

5. Map

6. Others.....

Related AI tags, queries and research notes

Translation